CAPEGEM MINING (PRIVATE) LIMITED
and
BLACKSAND MINING (PRIVATE) LIMITED
versus
FREDA REBECCA GOLD MINE LIMITED
and
MINISTER OF HOME AFFAIRS AND CULTURAL HERITAGE N.O.
and
COMMISSIONER GENERAL OF ZIMBABWE REPUBLIC POLICE N.O.
and
SIDE ELECTRICAL (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 31 March & 1 April 2026 & 8 May 2026

Urgent Chamber Application – Leave to execute pending appeal

G Sithole, for the applicants
W Musikadi, for the 1st respondent
F Chimunoko, for the 2nd and 3rd respondents
S Chimedza, for the 4th respondent

MUSITHU J:

1. This is an urgent chamber application for leave to execute a judgment granted by this court per MANDAZA J on 14 March 2026 under case number HCH 775/26 pending the determination of an appeal noted by the first respondent. The order sought is couched in the following terms:

> "IT IS HEREBY ORDERED THAT:
> 1. The application be and is hereby granted.
> 2. The Applicants be and are hereby granted leave to execute the judgment in HCH 775/26 pending the determination of the appeal filed under Case Number SC 290/26.
> 3.The 1st Respondent be and is hereby ordered to pay costs of suit on an attorney-client scale."

2. The application was opposed by the first respondent. The second, third and fourth respondents indicated that they would abide by the decision of the court.

Background

3. On 14 March 2026, this court granted a spoliation order in favour of the applicants against the first respondent. The order compelled the first respondent to restore possession of certain mining sites situated at Botha Mine, Bindura, and to remove any barriers or personnel impeding the applicants' access to its sites. Aggrieved by that decision, the first respondent noted an appeal to the Supreme Court on 16 March 2026. It is common cause that the noting of that appeal has the effect of suspending the execution of the order. The applicants have now approached the court seeking leave to execute pending appeal.

The First Applicant's Case

4. The first applicant's founding affidavit was deposed to by Sicelo Mbambo, in his capacity as the director of the first applicant. The applicant averred that from December 2024, it was in peaceful and undisturbed possession of two mining sites, namely Morocco A and Morocco B at Botha Mine, Bindura, prior to their dispossession by the first respondent. The first applicant relied on a tribute agreement which entitled it to operate on the claims. The first applicant also averred that it made substantial investments on the sites, including equipment and infrastructure valued in excess of USD1,000,000.00. The first applicant further averred that it had approximately three hundred employees at the mine.

5. Further according to the first applicant, on 12 February 2026, the first respondent unlawfully fenced off the area, deployed security personnel, and barricaded access to the sites, thereby excluding it from their operations. On 15 February 2026, operations ceased entirely and the first applicant was excluded from its property that left the work force idle and the investment exposed. The applicant thus approached the court seeking spoliatory relief.

6. The spoliation order was granted, and the respondents were directed to restore the status *quo ante*. On 16 March 2026, the first respondent noted an appeal to the Supreme Court against the whole judgment by MANDAZA J. Following the noting of the appeal, the applicants filed this urgent chamber application, seeking an order to execute the judgment, pending the determination of the appeal.

7. The first applicant averred it would suffer irreparable harm, if leave was not granted, while the first respondent, who was never in possession of the mining sites in question

and not conducting any operations at the disputed sites, would suffer little to no prejudice. The first applicant also averred that if leave to execute was not granted, it would continue to be excluded from its mining sites for the duration of the appeal. The first applicant had already suffered financial loss as the mine had come to a complete standstill.

8. The first applicant further argued that the first respondent's appeal had no reasonable prospects of success. It contended that the balance of convenience favoured the granting of leave to execute. The first applicant urged the court to grant the relief sought with an award of costs on the punitive scale.

The Second Applicant's Case

9. The second applicant's affidavit was deposed to by Prince Joseph Mukombwa in his capacity as the director of the second applicant. The second applicant associated itself fully with the deposition made in the first applicant's founding affidavit. The averments by the second applicant did not differ materially from those advanced by the first applicant. It is therefore unnecessary to restate them in detail. The second applicant averred that the first respondent's appeal was meritless and constituted an abuse of court process meant to delay the restoration of possession. On that basis, the second applicant also prayed for relief in terms of the draft order.

The First Respondent's Case

10. The first respondent raised a preliminary objection to the effect that the relief sought by the applicants was incompetent at law because the order granted was one *ad factum praestandum* and thus could only be enforced through contempt of court proceedings. On the merits, the first respondent maintained that the order granted by the court, being an order *ad factum praestandum*, in the event of non-compliance could only be enforced through contempt of court proceedings. The first respondent also denied having committed any acts of spoliation and maintained that any acts it undertook were within the confines of its own mining lease number 21.

11. The first respondent further averred that the applicants did not place any evidence before the court to demonstrate that it employed three hundred workers and that these workers had been rendered jobless. The first respondent denied ever having committed any acts of spoliation and insisted that the fencing activities were strictly confined to its own Mining Lease 21.

12. The first respondent averred that if leave was granted, its right to appeal would be rendered moot or nugatory. Its right of appeal ought to be protected. It also averred that there was no basis for removing a fence which was wholly within its mining site and not the applicants' mining location. The first respondent further averred that it had invested hundreds of dollars in protecting its mining Lease therefore, if leave was granted, it would suffer irreparable harm.

13. Further according to the first respondent, the appeal had prospects of success. When the spoliation matter was heard and argued, the court reserved its judgment both on the preliminary points and the merits. Judgment was handed down on 14 March 2026. A perusal of the order under granted under HCH 775/26 did not show *ex facie* that the court dealt with the preliminary points thus rendering the judgment granted grossly irregular.

14. The first respondent denied that the applicant was in peaceful and undisturbed possession of the Mining Lease Number 21. There were material disputes of fact which could not be resolved on the papers. There was no evidence that the first respondent had invaded the first applicant's mining area.

15. Further according to the first respondent, the interdict granted by the court was incompetent. The first respondent argued that the case of *Base Minerals v Mabwe Minerals*[1] relied upon by the court, was distinguishable in that the applicants therein had specifically sought an interim interdict pending the determination of the matter to finality while in *casu* the interdict was granted without being specifically sought and there was no pending matter. The court failed to properly justify the granting of an interdict in proceedings founded on possessory relief. It was further contended that the court overlooked relevant authorities, in particular *Chiwenga v Mubaiwa*[2] and *Nhende v Zigora*[3], which were more apposite to the issues before the court.

16. The first respondent averred that the appeal was not malicious. It argued that the balance of convenience favoured the dismissal of the application. If leave was granted, the first respondent would suffer irreparable harm as the fencing of its mining site was done in compliance with the provisions of the Mines and Minerals Act[4].

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[1] SC 29/15
[2] SC 86/20
[3] SC 102/22
[4] [*Chapter 21:05*]

17. The first respondent referred the court to case number HCH 1187/26, being an application for leave to execute pending appeal which was dismissed. It submitted that the present application ought to be treated in a similar manner. The first respondent further contended that there was no basis for an award of costs on a punitive scale, as it merely exercised its right to appeal and has been diligently prosecuting the matter.

Submissions by Counsel

18. On the day of the hearing of the matter, it turned out that the first respondent's notice of opposition had been filed on the eve of the hearing. Mr *Chimunoko*, appearing for the second and third respondents, informed the court that the second and third respondents would abide by the decision of the court. The same position was adopted by *Mr Chimedza*, appearing for the fourth respondent. The matter was accordingly stood down to 14:30 hours to enable the court and the first respondent's counsel to peruse the first respondent's opposition.

19. Upon resumption, *Mr Sithole* appearing for the applicants submitted that the issue of urgency had not been raised and it was common cause that the applicants had been served with the application on 14 March 2026 and that, following the granting of the order, an appeal was noted.

20. Mr *Sithole* referred to the requirements for leave to execute, as set out in *Arches (Pvt) Ltd v Guthrie Holdings (Pvt) Ltd*[5], and submitted that the major consideration was whether there existed a possibility of irreparable harm to the applicants if the application for leave to execute was dismissed. He argued that the court had already made a finding that the applicants had been despoiled. There were approximately three hundred employees who had not been paid their wages and that since the applicants were despoiled, there had been no production on the ground. The applicants' mining equipment had been vandalised and was becoming obsolete.

21. Mr *Sithole* further submitted that, without the applicants' occupation of the premises, the equipment was liable to theft. The acts of spoliation interfered with the applicants' economic activities. There was a high possibility of harm being occasioned to the applicants as compared to the first respondent who had not been carrying out operations on the site. Counsel submitted that there were no prospects of success on appeal and that the appeal had been noted solely to frustrate the applicants.

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[5] 1989 (1) ZLR 152 (H) at 154G

22. Counsel further argued that, on a proper reading of the grounds of appeal, the first and second grounds were defective and likely to be struck off. He submitted that, although the first respondent argued that they had raised points in *limine,* and were not determined, it had not sought their dismissal.

23. Regarding the preliminary objection that there were material disputes of fact, *Mr Sithole* argued that the first respondent did not seek the dismissal of the matter. Instead, it sought that the matter be struck off the roll or, in the alternative, that it be referred to trial. Further, regarding the issue of costs, at the time the appeal was noted, the first respondent was not aware of the basis upon which costs had been awarded because there was no written judgment. He also argued that the first respondent had noted an appeal on speculative grounds in the absence of a written judgment.

24. Mr *Sithole* pointed to the first ground of appeal which sought to impeach the decision of the court on the basis that the court had failed to dispose of the preliminary points that had been raised before it. Counsel queried how such a ground could be properly advanced in the absence of written reasons. Counsel contended that this illustrated the importance of a written judgment. A written judgment provided the backdrop against which an appeal must be noted.

25. Mr *Sithole* further argued that the appeal was noted simply to frustrate the applicants. The grounds of appeal were devoid of merit since the court was satisfied that the applicants had been despoiled. The parties had agreed to let the court dispose of the matter on the papers without the need for oral submissions. Regarding the allegation that the matter was an interdict, counsel submitted that what was before the court was a spoliation matter. The restoration of the *status quo ante*, in the circumstances implied the absence of a fence which had been erected by the first respondent. Therefore, on a balance of probabilities the Supreme Court would likely dismiss the appeal.

26. On the issue of enforcing the order through contempt of court proceedings, *Mr Sithole* submitted that it would not have been competent for the applicants to institute contempt proceedings once an appeal had been noted, as the noting of an appeal suspended the operation of an order.

27. In reply, Mr *Musikadi*, for the first respondent, submitted that the order granted by the court directed the first respondent to perform specific acts and that there existed established procedures for the enforcement of such orders. Counsel referred the court to

authors *Herbstein & Van Winsen, 5th Edition, p 1023,* and the case of *Base Minerals Zimbabwe (Pvt) Ltd v Mabwe SC 29/15* and argued that the applicants ought to have enforced the court order through contempt of court proceedings or by roping in the Sheriff.

28. Counsel further submitted that an appeal was directed at the order itself and that the *dies* for noting an appeal commenced from the date of the order, not from the date when reasons were furnished. Mr *Musikadi* submitted that the applicants had written to the registrar requesting reasons for the judgment. At the hearing of the matter, the court had indicated that judgment had been reserved on both the preliminary points and the merits. The written reasons were subsequently availed on 27 March 2026.

29. In his brief reply on the point, Mr *Sithole* observed that the reasons were availed on 27 March 2026, yet the first respondent had proceeded to file its notice of appeal on 30 March 2026 fully aware of the availability of the written judgment. Counsel argued that this conduct was prejudicial to the applicants and maintained that the appeal had been noted in bad faith without a written judgment. Mr *Sithole* prayed that the court grants the order sought with costs on a punitive scale against the first respondent as a way of expressing its displeasure with such type of conduct.

30. In his brief response, Mr *Musikadi* submitted that written reasons for the judgment were only stamped on 27 March 2026. Counsel further submitted that costs should either be in the cause or awarded on the ordinary scale. Counsel argued that the applicants were equally linked to the matter, so they would have received the written judgment as well.

31. Though the first respondent was now in possession of the written judgment, it was still to be placed before the court as part of the record before the court. Because the written judgment was critical to the disposal of the matter before the court, I postponed the matter to the following day and directed that the first respondent must file a copy of the judgment before the time allocated for the resumption of the hearing.

32. At the resumption of the hearing, Mr *Musikadi* informed the court that he had perused the judgment handed down on 27 March 2026 and was satisfied that it dealt with both the preliminary points and the merits of the matter. The first ground of appeal which was concerned with the failure of the court to dispose of the preliminary points was consequently abandoned. Counsel however insisted that the first respondent never committed any acts of spoliation, and that any activities were confined to its claims.

33. Counsel further submitted that the issue of material disputes of fact, particularly regarding whether the first respondent had interfered with activities at Botha Mine, had been raised and the court had determined that the first respondent was bringing issues of ownership into the fold. He argued that the first respondent did not require a court order to fence its area and that this issue had been raised in the main proceedings.

34. Mr *Musikadi* also submitted that the appeal was filed in good faith to reverse the judgment of the court in the spoliation matter. Regarding the issue of removal of the fence, counsel argued that if leave was granted, the fence would be permanently removed. Mr *Musikadi* raised the issue of *res judicata*, with reference to the proceedings in case number HCH 1187/26, in which the fourth respondent's appeal for leave to execute pending appeal was dismissed.

35. In reply, Mr *Sithole* submitted that the defence of *res judicata* was not applicable to the present proceedings, as the application for leave to execute in that matter did not involve the same parties as the parties herein. The applicants' rights were derived from a tribute agreement relating to specific mining claims.

36. Mr *Sithole* also dismissed the argument on the alleged disputes of fact insisting that the matter had been properly dealt with on the papers. The first respondent had not denied erecting a fence around the disputed area. The effect of erecting the fence was to create a barricade which denied the applicants access to their claims. He submitted that, for a period of twelve months prior to that event, the applicants had been in occupation of the area.

37. Mr *Sithole* also argued that the issue of possession was never made an issue. There was therefore no need for a ground verification. He submitted that the relief granted was for access and not an interdict, and that there was nothing improper in the court granting an order followed by written reasons. In any event, the relief sought by the respondents was incompetent.

The analysis

38. The issues arising for determination are:

(i) whether the application is barred by the doctrine of *res judicata* in light of the proceedings under case number HCH 1187/26;

(ii) whether the relief sought is incompetent at law because the order granted in the spoliation matter was *ad factum praestandum* and could only be enforced through contempt of court proceedings; and

(iii) whether the applicants have satisfied the requirements for leave to execute pending appeal. Before turning to the merits, I shall deal with the preliminary points first.

Whether the application was barred by the plea of *res judicata* in light of the proceedings under case number HCH 1187/26

39. The first respondent argued that the matter was *res judicata* by reason of proceedings under case number HCH 1187/26. That argument cannot be sustained. For a plea of *res judicata* to succeed, the parties, the cause of action and the subject matter must all be the same. In *Banda & Ors v ZISCO*[6], the Supreme Court held that the requirements of *res judicata* are;

> "The three requisites of a plea of *res judicata*, said the Chief Justice in *Hiddingh v Denyssen & Ors* (1885) 3 Menz 424, quoting Voet (44.2.3), are that the action in respect of which judgment has been given must have been between the same parties or their privies, concerning the same subject matter and founded upon the same cause of complaint as the action in which the defence is raised …"

40. The parties in HCH 1187/26 are not the same as those before me in the current proceedings nor is the relief identical. The applicant in that matter was Side Electrical (Private) Limited t/a Botha Mine, whereas in the present matter the applicants are Capegem Mining (Private) Limited and Blacksand Mining (Private) Limited.

41. Equally important is the difference in the cause of action. In HCH 1187/26, the application for leave to execute arose from a separate dispute, albeit related to the same mining area. In the present matter, the application hinges on the spoliation order granted under HCH 775/26 in favour of the present applicants. The rights asserted here are therefore not the same as those litigated in the earlier proceedings.

42. Further, a dismissal of an application for leave to execute in separate proceedings cannot, without more, bar a fresh application by different parties asserting their own rights. In the circumstances, the essential elements of the plea of *res judicata* were not established. The plea of *res judicata* is without merit and is accordingly dismissed.

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[6]1999 (1) ZLR 340 (SC)

Whether the relief sought is incompetent at law on the basis that the order granted was *ad factum praestandum*

43. Mr *Musikadi* argued that the order sought to be executed was *ad factum praestandum* and that, in the event of non-compliance, the applicants were confined to enforcement through contempt of proceedings. On that basis, the first respondent argued that the present application was incompetent. This submission is without merit. It is correct that the order granted by MANDAZA J directed the performance of specific acts, namely the restoration of possession and the removal of barriers and personnel from the disputed sites. Such orders are, in the ordinary course, enforceable through contempt proceedings or with the assistance of the Sheriff.

44. However, the present application is not one for enforcement of the order *per se*. It is an application for leave to execute pending appeal. The distinction is important. The applicants approached this court because the noting of the appeal suspended the operation of the order being appealed against. In those circumstances, contempt proceedings would not be applicable, as there was no operative order capable of being enforced while the suspension subsisted.

45. The applicants were therefore within their rights to bring an application for leave to execute which is a recognised procedural remedy to uplift the suspension. In the face of an appeal, the applicants could not compel compliance through contempt of court proceedings. In any event r 69(1) of the High Court rules, 2021, permits the sheriff to enforce such orders through a writ of execution issued by the registrar.[7]

Analysis of the merits

46. The principles governing applications for leave to execute pending appeal are now settled. In *Masimbe v Masimbe* 1995 (2) ZLR 31 (S) at 36F-37B, the court stated the following:

> "Sandura JP rightly stated that the principles to be applied where a party applies to have an order of court enforced notwithstanding the pending of an appeal were set out by Corbett

[7] "69. Writ of execution-general
(1) The process for the execution of any judgment for the payment of money, for the delivery up of goods or premises, or for ejectment, shall be by writ of execution signed by the registrar and addressed to the sheriff, ……."

JA (as he then was) in South Cape Corp (Pty) Ltd v Eng Mgmt Svcs (Pty) Ltd 1977 (3) SA 534 (A) at 545 as follows:

> The court to which application for leave to execute is made has a wide general discretion to grant or refuse leave… In exercising this discretion, the court should in my view, determine what is just and equitable in all the circumstances and in doing so, would normally have regard inter alia to the following factors:
>
> (1) the potentiality of irreparable harm or prejudice being sustained by the appellant on appeal, if leave to execute were granted;
>
> (2) the potentiality of irreparable harm or prejudice being sustained by the respondent on appeal, (applicant in the application) if leave to execute were to be refused;
>
> (3) the prospects of success on appeal, including more particularly the question as to whether the appeal is frivolous or vexatious or has been noted with the bona fide intention of seeking to reverse the judgment but for some indirect purpose, eg to gain time or harass the other party; and
>
> (4) where there is the potentiality of irreparable harm or prejudice to both appellant and respondent, the balance of hardship or convenience, as the case may be"

47. From a reading of the above *dictum*, what is clear is that the court exercises a discretion, guided primarily by considerations of justice and equity. See *Khumalo v Khumalo* 2004 (1) ZLR 248 (H).

Application of the law to the facts

Irreparable harm

48. The applicants emphasised that they would suffer irreparable harm if execution was not granted. They alleged ongoing financial losses, idle equipment, unpaid employees and continued exclusion from the mining sites.

49. The first respondent, on the other hand, argued that execution would result in the removal of its fencing and interference with its mining lease, thereby causing irreparable harm and effectively rendering the appeal nugatory.

50. The order in question compelled restoration of possession and dismantling of physical structures, including fencing. Both parties alleged potential harm. However, given the uncertainty surrounding the location of the disputed sites, it appears to me that the risk of irreversible prejudice to the first respondent weighs more heavily.

51. Considering the competing prejudice as highlighted by the parties, the matter cannot be resolved on this factor alone. The enquiry must therefore proceed to consider the prospects of success on appeal, which becomes decisive in determining whether the relief sought should be granted.

Prospects of success

52. In assessing the prospects of success, the court is enjoined to consider the grounds of appeal in the context of the reasons for the judgment sought to be executed. The applicants' case is founded on the order granted by MANDAZA J granted on 14 March 2026. That order was detailed and identified the mining sites by reference to GPS coordinates. It directed the restoration of possession and removal of any fence or barrier erected at the entrance or around the said mining sites. The notice of appeal challenged the entire judgment on several grounds, including the existence of disputes of fact and the propriety of granting spoliatory and interdictory relief.

53. The evidence presented revealed an ongoing and deeply contested dispute regarding the precise location of the mining claims and the extent of Mining Lease 21. The first respondent consistently maintained that its activities were confined to its own lease, while the applicants argued that they were in peaceful possession of the area. In weighing these competing considerations, one issue stands out. The issue of location. The central feature of this dispute, evident from the parties' respective cases in my view, is the disagreement over the precise location of the mining sites. The applicants relied on coordinates in defining their claims. The first respondent insisted that its activities were confined to its Mining Lease 21.

54. The judgment by MANDAZA J granted a spoliation order on the basis that the applicants had established peaceful possession and unlawful dispossession. The court emphasised that ownership was irrelevant in spoliation proceedings and that self-help was impermissible. That reasoning was consistent with established principles in spoliation proceedings. However, the present enquiry is different. This court is not sitting as an appellate court over that judgment. It must determine whether, pending appeal, execution should be permitted.

55. In my view, the issue of location goes to the heart of whether the alleged spoliation occurred at all. The notice of appeal expressly raised this issue, contending that there were material disputes of fact incapable of resolution on the papers, particularly regarding whether the areas in question overlap. The lack of ground verification further deepened the uncertainty already identified regarding location of the parties respective mining claims. In that context, the ground of appeal relating to the existence of disputes of fact and the location of the mining sites, cannot be dismissed as frivolous.

56. The same also goes to the ground of appeal which sought to impeach the granting of the spoliation order in the absence of definitive proof that the applicants were in peaceful and undisturbed possession of the alleged mining sites. They raise issues that go to the factual foundation upon which the spoliation order was granted.

57. In my view, once the question of location was seriously put into issue and supported by material in the record, a degree of uncertainty arose. Whether the first respondent fenced off an area occupied by the applicants, or whether it acted within the confines of its own mining lease, is a question that could not be determined with certainty on the papers without recourse to a ground verification of the sites and *viva voce* evidence.

58. It was not in dispute that feuding parties held rights in respect of their respective mining locations. Whether the respondents interfered with the rights of the applicants, thus creating grounds for approaching the court for spoliatory relief, is a matter that required a proper ventilation of the parties' respective mining sites with the assistance of the administrative functionaries responsible for allocating mining claims.

59. That uncertainty regarding the exact location of the parties' respective claims cannot be reconciled outright on the papers without additional evidence. It is indeed correct that spoliation proceedings are not concerned with ownership. The fact that the first respondent is the owner of Mining Lease Number 21 does not, in itself, defeat a claim for spoliation. Spoliation is merely directed at restoring the *status quo ante.* However, even so, the court must still be satisfied that the applicants were in possession of the specific area from which they allege that the acts of spoliation were committed. The enquiry must relate to the actual land fenced off by the first respondent.

60. The effect is that there is doubt as to whether the applicants were in peaceful and undisturbed possession of the disputed site or that the order granted related to an area exclusively occupied by the applicants or one falling within the first respondent's lease. That doubt is sufficient to affect the balance of convenience.

61. In my view, to grant leave to execute in such circumstances would likely cause irreparable harm to the first respondent by compelling it to dismantle structures on land that it claimed to have been under its possession at the time of the alleged spoliation. The appeal, in my view raises arguable issues, particularly concerning the existence of disputes of fact and the location of the parties mining claims. These are not frivolous

grounds. They warrant proper ventilation on appeal and militate against the granting of leave to execute pending the determination of the appeal.

Balance of Convenience

62. In my view, the balance of convenience favours the preservation of the *status quo* pending the determination of the appeal. In all the circumstances, it is just and equitable that execution be suspended until the finalisation of the appeal.

Costs

63. This is a matter in which both parties have vigorously asserted their rights in a complex and ongoing dispute. The issues raised are not frivolous. In the exercise of my discretion, I consider that a punitive order of costs is not justified. Nor is it appropriate to burden either party with costs in circumstances where the dispute remains unresolved and is the subject of a pending appeal.

Resultantly it is ordered that:

1. The application for leave to execute the judgment in case number HCH 775/26 pending the determination of the appeal under case number SC 290/26 is hereby dismissed.
2. 2. Each party shall bear its own costs of suit.

MUSITHU J: …….

Chivore Dzingirayi Group of Lawyers, applicants' legal practitioners
Chimuka-Mafunga Commercial Attorneys, 1st respondent's legal practitioners
Civil Division of the Attorney General's Office, 2nd and 3rd respondents' legal practitioners
Mudimu Law Chambers, 4th respondent's legal practitioners